

SUNSET PENTHOUSE CONDOMINIUM ASSOCIATION

1400 NORTH SWEETZER AVENUE
WEST HOLLYWOOD, CALIFORNIA 90069

To: All Homeowners and Tenants

From: SPCA Board of Directors

Re: Rules and Regulations

Effective: 1/1/2020 (updated)

All residents (homeowners and tenants) share in the responsibility of making the Sunset Penthouse Condominiums a truly outstanding place to live. To help facilitate this, the Board of Directors - on behalf of the HOA- has adopted over the years the following rules and regulations, which apply to all homeowners, tenants, and visitors. Rule violations should be reported in writing to the Board.

RESPONSIBILITIES

- 1) Homeowners are responsible for the actions of their tenants.
- 2) Residents are responsible for the actions of their visitors (guests, employees, contractors, etc.).
- 3) Residents are encouraged to resolve disputes between the concerned parties; the Board will act as mediator only if requested to do so and only if the Board feels it is appropriate to do so.

COMMON AREAS (lobby, hallways, stairwells, elevator, roof deck, parking garages, courtyard, exteriors & landscaping)

- 1) Please keep the common areas clean at all times; residents are responsible for cleaning up any debris (litter, soil, stain, etc.) and repairing any damage caused by their visitors.
- 2) Smoking is not permitted in the common areas; the only exceptions are in the parking garages or on the roof deck, provided that the ashes and butts are disposed of properly.
- 3) Please refrain from making any unreasonable noise that may disturb or annoy other residents.
- 4) Any "For Sale" or "For Rent" signs to be placed in the common area that are unusual in regards to size or location must be approved in advance by the Board. The customary location for such signs is in the planter at southwest corner of the building.
- 5) When using the roof deck, please stay within the railing (keeping off the actual roof area).
- 6) The roof deck may be used for a party or event with the prior approval of the Board and a \$250.00 refundable deposit for cleaning and repairs. As a general rule, parties must end at 10:00 pm

PARKING GARAGES

- 1) Parking is allowed only in the assigned spaces; Parking is not allowed in the circulation aisles of either garage in the project. The fine for parking in the circulation aisles of either parking garage of the project is \$350.00 per car per occurrence and the offending car(s) will be towed whenever possible. The fine will be levied against the unit to which the parked automobiles are associated. No warning letter will be sent to the offending homeowner. Guest permits (annual and multi-day) for on-street parking are readily available from the city of West Hollywood.
- 2) The driveways are for entering and exiting the parking garages, not for parking. A 10-minute grace period for emergencies is allowed if the hazard lights are flashing and the gateway isn't blocked. This applies only to the DeLongpre garage.
- 3) Vehicles in either garage that leak oil must have a drip pan under the vehicle's leak area and the contents of the drip pan must be properly disposed of in accordance with West Hollywood city laws.
- 4) Any items stored in the garage must be fully enclosed in metal, plastic or wood cabinets/containers (with the design to be approved by the Board) that can fit between the

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homeowner's assigned parking space(s) and the wall. Avoid using cardboard boxes (due to roaches, mice and rats)! Additionally, the amount of items stored must be minimal.

- 5) Due to drainage issues, the washing of cars is not allowed in either parking garage.

TRASH & RECYCLING

- 1) Due to noise concerns, please do not use the trash chute before 6:00am or after 10:00pm.
- 2) If the recycling bins in the DeLongpre level garage are full, please use the dumpster in the Sweetzer level garage (rather than placing anything alongside or on top of the recycling bins).
- 3) **Please take large or bulky items directly to the dumpster to avoid jamming the trash chute.**

CONSTRUCTION WORK

- 1) Construction work is allowed from 8:00am to 4:30pm on weekdays; beyond these time periods, work that may disturb other residents is not allowed without prior permission from a Board member.
- 2) Before work commences, an announcement with the estimated time schedule and phone numbers (of the contractor and homeowner) must be posted on the bulletin board in each garage elevator lobby.
- 3) At the end of each day during construction, the hall carpets and stairwells are to be vacuumed and/or swept if there are signs of debris, footprints, etc.
- 4) All construction workers and materials must go through the garages and elevator (or the stairwells); the main entrance lobby is not to be used as an entrance/exit. The elevator wall/floor pads must be installed and removed each day (the pads and floor cover are stored in the laundry room, next to the recycling bins).
- 5) In the event of major construction work, the homeowner is encouraged to accompany a Board member on a walk-through of the common areas to ensure that any pre-existing conditions are noted.
- 6) If the building dumpster is to be used for construction waste, a member of the Board must be informed to arrange for extra pickups at the expense of the homeowner.
- 7) No construction is allowed on major holidays whereby due to the nature of the holiday, most homeowners would not be working. This includes significant religious days. *The current days observed are as follows: New Year's Day, President's Day, Memorial Day, July 4th (observed), Labor Day, Yom Kippur, Rosh Hashanah, Thanksgiving (4 day holiday) Christmas Eve and Christmas Day.*

ARCHITECTURAL/DESIGN STANDARDS

- 1) Any changes affecting the exterior look of a unit must be approved in advance by the Board.
- 2) The cement floor slab is not to be used as a final floor due to noise problems unless 80% is covered by carpet or similar noise abatement material.
- 3) If hardwood floors are to be installed, plywood sub-flooring must be installed (using either glue or a pneumatic nail gun).
- 4) All door knobs and deadbolts for each unit's entry doors must be the base building "Tulip" style with the *brushed stainless finish* (not *brushed chrome* or *brushed nickel*).
Balcony sun shades may be installed by Van Nuys Awnings, the association's only approved vendor. (Color: White)

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- 5) Balconies should not be used as "storage" for old indoor furniture, paint cans, cleaning supplies, etc.
- 6) **As preventative measures, washing machines should have braided stainless steel mesh-covered water supply hoses and clothes dryer ducting should be cleaned out on a regular basis. Hi-efficiency washing machines are mandatory.**

MOVING

- 1) There is a move-in fee of \$250.00 charged to the buyer/renter and a move-out fee of \$250.00, charged to the homeowner.
- 2) The preferred days for moving in or out are Monday through Saturday; moving in or out on Sunday is not allowed without prior permission from a Board member.
- 3) Please use the garages, stairwell or elevator for moving, not the lobby. The elevator wall pads and masonite floor covering must be installed when used during moving and returned to storage when done (the pads and floor covering are stored in the laundry room, next to the recycling bins in the DeLongpre garage elevator lobby). If it is necessary to use the main entrance lobby, furniture pads, rubber matting or layout boards must be placed over the lobby floor as well as the front door area and steps. The elevator floor covering is large and cumbersome but must be placed on the elevator floor with the felt pads on the floor.

SECURITY

Under no circumstances may any exterior door or garage gate be left open unattended.

CHRISTMAS DECORATIONS

Balconies may be decorated for the Christmas and winter holiday season starting December 1st and finishing January 10th.

NUISANCE/NOISE

Article V, Section 5.6(b) of the CC&Rs provides, among other things, that:

“No Owner shall permit or suffer anything to be done or kept upon or in the Owner's Unit or the Common Area (including balconies and patios) which will obstruct or interfere with the rights of other Owners, their families, guests, tenants, servants and invitees, nor annoy them by unreasonable noises or otherwise, nor which shall in any way interfere with the quiet enjoyment by each Owner of such Owner's respective Condominium . . .”

In order to minimize interferences with other owners' quiet use and enjoyment of their units, quiet hours are from 10:00 p.m. to 7:00 a.m. Sundays through Thursdays, and 11:00 p.m. to 8:00 a.m. Fridays and Saturdays. During “quiet hours” no loud talking, excessive noises or boisterous conduct is permitted at any time in the project. This includes, but is not limited to, voices, televisions, radios and/or any other musical devices.

In addition to any other rights and remedies which the Association may have, the Board may, after notice and a hearing, impose monetary penalties against an owner who violates this provision or whose co-occupants and/or invitees who violate this provision.

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**SCHEDULE OF MONETARY PENALTIES
SUNSET PENTHOUSE CONDOMINIUM ASSOCIATION, INC.**

The Board may assess monetary penalties for violations of the governing documents against an owner as follows:

1. Violations. The Board may assess a monetary penalty of up to \$350.00 for each occurrence of a violation. The Board will send a written notice to the owner identifying the nature of the violation and a time frame for correcting the violation (if applicable); stating that the Board intends to impose a monetary penalty against the owner; and specifying the date, time and location of the hearing concerning such violation. The notice shall identify the amount of the proposed monetary penalty, which shall be up to \$350.00 for each occurrence. The hearing date will be at least ten (10) days from the date of notice. The owner has the right to attend the hearing and address the Board regarding the matter. If an owner fails to attend the hearing or to submit any written evidence on his behalf to the Board at the hearing, the monetary penalty may, nonetheless, then be imposed against the owner. The Board will provide the owner notice of the disciplinary action taken against him within fifteen (15) days after the hearing. If a repeat violation occurs past the hearing and first monetary penalty stage, another monetary penalty of up to \$350.00 may be automatically assessed upon every violation.

2. On-Going Violations. For an on-going violation, the Board may assess an initial monetary penalty of \$350.00, and additional monetary penalties of up to \$250.00 per day. The Board will send a written notice to the owner identifying the nature of the on-going violation and a time frame for correcting the violation; stating that the Board intends to impose a monetary penalty against the owner; and specifying the date, time and location of the hearing concerning such violation. The notice shall identify the amount of the proposed monetary penalty, which shall be up to \$350.00 for the initial violation and up to \$250.00 for each day on which the violation remains uncorrected. The hearing date will be at least ten (10) days from the date of notice. The owner has the right to attend the hearing and address the Board regarding the matter. If an owner fails to attend the hearing or to submit any written evidence on his behalf to the Board at the hearing, the monetary penalty may, nonetheless, then be imposed against the owner. The Board will provide the owner notice of the disciplinary action taken against him within fifteen (15) days after the hearing. If an on-going violation continues after the hearing and first monetary penalty stage, another monetary penalty of up to \$250.00 may be automatically assessed for each day on which the violation remains uncorrected.